

BIMBA XR - TERMS AND CONDITIONS

Application Name: BIMba XR

Company Name: Sarvayaan

Last Updated: November 24, 2025

Jurisdiction: India

1. INTRODUCTION AND ACCEPTANCE OF TERMS

These Terms and Conditions ("**Terms**") govern your use of the BIMba XR mobile application ("**Application**" or "**App**"), available on Google Play and other distribution platforms in India. BIMba XR is an augmented reality (AR) and extended reality (XR) application designed for building information modeling, visualization, and interactive 3D model exploration.

By downloading, installing, accessing, or using the BIMba XR Application, you acknowledge that you have read, understood, and agree to be bound by these Terms and Conditions. If you do not agree to these Terms, you must not use the Application.

These Terms are governed by the **Information Technology Act, 2000**, the **Consumer Protection Act, 2019**, and other applicable laws of India.

2. ELIGIBILITY AND AGJ RESTRICTIONS

To use BIMba XR, you must:

- Be at least **18 years of age**, or if younger, have the express written consent of your parent or legal guardian
- Be a resident of India or legally authorized to use services within India
- Have a valid Google Account for installation via Google Play
- Have legal capacity to enter into binding contracts under Indian law
- Comply with all applicable laws and regulations of India, including state-specific regulations
- Not be a person prohibited by the Government of India from using digital services

Minor Users: If you are between 13-18 years of age and wish to use the Application:

- Your parent/legal guardian must provide written consent
- Your parent/legal guardian will be held responsible for all terms, conditions, and liabilities
- We will collect minimal data necessary for functionality only

Persons under 13 years are not permitted to use this Application.

3. LICENSE GRANT AND RESTRICTIONS

Grant: Sarvayaan grants you a limited, non-exclusive, non-transferable, non-assignable, and revocable license to download, install, and use the Application on your personal mobile device for personal, non-commercial use only, subject to these Terms.

Restrictions: You expressly agree NOT to:

- Modify, translate, adapt, or create derivative works of the Application
- Reverse engineer, disassemble, decompile, or attempt to extract source code
- Remove, alter, or obscure any proprietary notices, logos, or trademarks
- Rent, lease, sell, assign, or transfer the Application or licenses
- Use the Application for unlawful purposes or in violation of Indian laws
- Attempt to gain unauthorized access to the Application or backend systems
- Transmit viruses, malware, worms, or harmful code
- Use the Application to harass, abuse, threaten, or harm any person or organization
- Collect personal data of other users without explicit consent
- Use automated tools (bots, scrapers, crawlers) to access the Application
- Engage in unauthorized commercial activities through the Application
- Interfere with or disrupt the functionality or performance of the Application
- Violate the intellectual property rights of Sarvayaan or third parties
- Create multiple accounts to circumvent restrictions or terms
- Use the Application while violating RBI guidelines, SEBI regulations, or other financial compliance laws

Compliance with Indian Law: You must ensure your use complies with:

- Information Technology Act, 2000
- Information Technology (Intermediaries Guidelines and Digital Ethics Code) Rules, 2021
- Consumer Protection Act, 2019
- Data protection and privacy laws
- All applicable central and state laws

4. INTELLECTUAL PROPERTY RIGHTS

Ownership: Sarvayaan owns and retains all intellectual property rights, including copyrights, trademarks, patents, trade secrets, and proprietary information related to the Application, its design, features, functionality, and content ("**Intellectual Property**").

The BIMba XR name, logo, and associated trademarks are the exclusive property of Sarvayaan and are protected under the Trade Marks Act, 1999.

User-Generated Content: To the extent you create, upload, or contribute content (such as 3D models, annotations, or project files):

- You retain ownership of such content
- You grant Sarvayaan a worldwide, royalty-free, perpetual, non-exclusive license to use, modify, reproduce, and distribute such content for operational and improvement purposes
- You warrant that you own or have rights to all content you upload
- You agree not to upload content that infringes third-party rights

Third-Party Components: The Application may incorporate third-party software licensed under open-source and proprietary licenses. Your use is subject to such license terms.

5. USER CONDUCT AND RESPONSIBILITY

You agree to use the Application responsibly and in compliance with all Indian laws. Specifically, you:

- Use the Application only for its intended purposes as described in the store listing
- Provide accurate and truthful information during registration and account creation
- Maintain confidentiality of your account credentials
- Accept full responsibility for all activities under your account
- Immediately notify Sarvayaan of unauthorized access or security breaches
- Comply with all applicable Indian laws, including:
 - Information Technology Act, 2000 and Rules 2011
 - IT(Intermediaries Guidelines and Digital Ethics Code) Rules, 2021
 - Consumer Protection Act, 2019
 - Bharatiya Nyaya Sanhita, 2023
 - All state-specific regulations
- Respect intellectual property and privacy rights of others
- Not use the Application for:
 - Defamation or hate speech
 - Obscene or sexually explicit material
 - Incitement to violence or illegal activities
 - Fraud, forgery, or financial crimes
 - Circumventing payment systems or billing controls
 - Political campaigning or election-related activities
 - Harassment or threatening behavior

6. PERMISSIONS AND DEVICE SENSORS

BIMba XR requires certain device permissions for core functionality:

Permission	Purpose	User Control
Camera	AR overlay visualization and 3D model placement	Can be disabled in device settings
Storage	Project files, 3D models, and local data	Can be disabled in device settings
Location	Optional, for location-based features	User consent required; can disable anytime
Microphone	Optional, for voice notes and commands	Explicit consent required
Motion Sensors	AR tracking and gesture recognition	Cannot be disabled (core functionality)
Contacts/Calendar	Optional, for collaboration features	Explicit consent required

You can manage all permissions through your device's Settings app at any time. Disabling certain permissions may limit Application functionality.

7. DISCLAIMER OF WARRANTIES

As-Is Provision: BIMba XR is provided "**as is**" and "**as available**" without any warranties, express or implied, including:

- Warranties of merchantability or fitness for a particular purpose
- Warranties of title or non-infringement
- Warranties regarding accuracy, completeness, or reliability of content
- Warranties that the Application will meet your requirements
- Warranties that the Application is error-free or uninterrupted
- Warranties that defects will be corrected
- Warranties that the Application is free of viruses or harmful code

Subject to Indian Consumer Protection Act, 2019: To the extent permitted by the Consumer Protection Act, 2019, Sarvayaan disclaims all warranties. However, implied warranties under the Consumer Protection Act cannot be excluded, and your rights under that Act remain unaffected.

8. LIMITATION OF LIABILITY

To the fullest extent permitted by Indian law, Sarvayaan shall not be liable for:

- Indirect, incidental, consequential, special, punitive, or exemplary damages
- Loss of profits, revenue, data, goodwill, or business opportunities
- Damages arising from loss of access or service interruptions
- Damages from third-party claims or unauthorized access
- Damages from errors, omissions, or inaccuracies

- Damages from delays or failure to perform obligations

Aggregate Liability Cap: In no event shall Sarvayaan's total liability exceed the amount you paid for the Application in the 12 months preceding the claim, or ₹500 (Five Hundred Rupees), whichever is greater.

Exception: This limitation does not apply to:

- Death or personal injury caused by Sarvayaan's negligence
- Fraud or willful misconduct
- Liability that cannot be limited by law
- Your rights under the Consumer Protection Act, 2019

9. INDEMNIFICATION

You agree to indemnify, defend, and hold harmless Sarvayaan, its directors, officers, employees, agents, and service providers from any and all claims, damages, liabilities, or expenses (including reasonable attorney's fees) arising from:

- Your use of the Application or violation of these Terms
- Your violation of any Indian law or regulation
- Your infringement of third-party intellectual property or privacy rights
- Content you create, upload, or share through the Application
- Your conduct or interactions with other users
- Your breach of any representations or warranties

This indemnification obligation survives termination of these Terms.

10. THIRD-PARTY SERVICES

The Application may integrate with or provide links to third-party services, cloud storage, or websites ("**Third-Party Services**"). Sarvayaan:

- Does not endorse or control Third-Party Services
- Is not responsible for content, accuracy, or practices of Third-Party Services
- Is not liable for damages arising from your use of Third-Party Services
- Is not responsible for the terms, privacy policies, or conduct of Third-Party Services

Your use of Third-Party Services is subject to their respective terms and privacy policies. You are solely responsible for reviewing and complying with such terms.

11. TERMINATION AND SUSPENSION

Termination by You: You may terminate your use at any time by deleting the Application and discontinuing account use. We will delete your data as per our Privacy Policy.

Termination by Sarvayaan: Sarvayaan may terminate or suspend your access immediately without notice if:

- You violate these Terms or any applicable Indian law
- You engage in conduct harmful or inappropriate (as determined in our reasonable discretion)
- You use the Application for unlawful purposes
- Your account is linked to fraud or unauthorized activity
- You fail to pay applicable fees or charges
- You violate the Information Technology Act, 2000 or Rules 2011

Post-Termination: Upon termination:

- Your right to use the Application ceases immediately
- You remain liable for outstanding fees or obligations
- Survival clauses (IP Rights, Limitation of Liability, Indemnification) continue
- Your data is retained per our Privacy Policy or deleted upon request

12. DATA SECURITY AND PROTECTION

Sarvayaan implements industry-standard security measures:

- **Encryption:** AES-256 encryption for stored data; TLS 1.2+ for data in transit
- **Access Controls:** Role-based access with authentication mechanisms
- **Security Audits:** Regular security assessments and vulnerability testing
- **Compliance:** Adherence to Information Security Management standards (ISO 27001)
- **Employee Training:** Data protection and privacy training for all staff
- **Incident Response:** Documented procedures for security breach response
- **Backup Systems:** Secure backup and disaster recovery protocols

Limitations: No security system is completely impenetrable. Sarvayaan does not guarantee absolute security and cannot be liable for unauthorized access or data breaches beyond reasonable control.

Your Responsibility: You are responsible for:

- Maintaining confidentiality of account credentials
- Protecting your device from unauthorized access
- Backing up critical data
- Complying with device security best practices

13. PREMIUM FEATURES AND IN-APP PURCHASES

Pricing and Payments:

- All prices are displayed in Indian Rupees (₹) before purchase
- Purchases are processed through Google Play Billing
- All transactions are final unless a refund is required by law
- Refunds are subject to Google Play's refund policy (typically 15 minutes for in-app purchases)
- Subscription terms are clearly disclosed before purchase

Auto-Renewal:

- Subscriptions auto-renew unless canceled
- You can cancel subscriptions through Google Play app settings
- Cancellation takes effect at the end of your current billing period

Consumer Protection: Your purchases are protected under the Consumer Protection Act, 2019. You have the right to:

- Receive accurate product information
- File complaints for defective or misleading services
- Seek refunds for defective services
- Access redressal mechanisms

Billing Disputes: For billing issues, contact Google Play Support. Sarvayaan will cooperate with Google Play to resolve disputes.

14. COMMUNICATIONS AND NOTIFICATIONS

By using the Application, you consent to receive:

- **Essential Notifications:** Account alerts, security notifications, service updates
- **Policy Updates:** Changes to Terms, Privacy Policy, or service offerings
- **Support Communications:** Responses to your inquiries and support tickets
- **Transactional Communications:** Order confirmations, invoices, receipts
- **Optional Communications:** Updates, new features (can be disabled in settings)

You can manage notification preferences through:

- Device Settings
- Application Settings
- Unsubscribe links in emails
- Direct contact to support@bimbaxr.com

Critical notifications (security, service disruptions) cannot be disabled.

15. AVAILABILITY AND MAINTENANCE

Sarvayaan may:

- Perform maintenance, updates, or upgrades to the Application
- Modify, suspend, or discontinue features or services
- Experience temporary outages or service interruptions
- Conduct system maintenance during off-peak hours

We will make reasonable efforts to provide notice of scheduled maintenance. However, emergency maintenance or critical security updates may be performed without prior notice.

16. MODIFICATION OF TERMS

Sarvayaan reserves the right to modify these Terms at any time. Changes become effective immediately upon posting within the Application or on our website.

Notice: For material changes, we will:

- Provide at least **30 days' advance notice** through the Application or email
- Clearly identify what has changed
- Request your acknowledgment before continued use

If you do not agree with modified Terms, you must discontinue use of the Application. Continued use indicates your acceptance.

17. GOVERNING LAW AND DISPUTE RESOLUTION

Governing Law: These Terms are governed by the laws of India, without regard to conflict of law principles. Specific applicability:

- **Information Technology Act, 2000**
- **Consumer Protection Act, 2019**
- **Indian Contract Act, 1872**
- **Bharatiya Nyaya Sanhita, 2023** (effective 2025)
- **State-specific laws and regulations**

Jurisdiction: You expressly submit to the exclusive jurisdiction of the courts in **New Delhi, India** for any legal proceedings.

Dispute Resolution Process:

1. **Informal Resolution:** First, attempt to resolve disputes through good-faith negotiation and written communication with Sarvayaan at support@bimbaxr.com.
2. **Consumer Dispute Resolution (India):** If informal resolution fails:
 - For disputes up to ₹1 Crore: District Consumer Commission has jurisdiction

- For disputes ₹1-10 Crore: State Consumer Commission
- For disputes above ₹10 Crore: National Consumer Commission
- Complainant can file at any Consumer Commission

3. **Escalation:** If Consumer Commission route is not applicable, disputes shall be subject to arbitration as per the **Arbitration and Conciliation Act, 1996**.

4. **Arbitration Details:**

- **Seat of Arbitration:** New Delhi, India
- **Rules:** Indian Arbitration and Conciliation Act, 1996
- **Language:** English or Hindi, as chosen by complainant
- **Number of Arbitrators:** Single arbitrator (or three if amount exceeds ₹1 Crore)

Limitation Period: Any legal claim must be initiated within **1 year** from the date the cause of action arises; otherwise, the claim is barred.

18. SEVERABILITY

If any provision of these Terms is declared invalid, illegal, or unenforceable by a court of competent jurisdiction in India:

- Such provision shall be modified to the minimum extent necessary to render it enforceable
- If modification is not possible, the provision shall be severed
- Remaining provisions continue in full force and effect
- The severed provision shall not affect the validity of other provisions

19. ENTIRE AGREEMENT

These Terms and Conditions, together with the Privacy Policy, constitute the entire agreement between you and Sarvayaan regarding the Application and supersede all prior and contemporaneous agreements, understandings, and negotiations, whether written or oral.

20. CONTACT INFORMATION

For questions, concerns, or disputes regarding these Terms and Conditions, please contact:

Sarvayaan

Application: BIMba XR

Email: support@bimbaxr.com

Website: www.sarvayaan.com

Registered Address: [To be inserted - Registered office address in India]

Phone: [To be inserted - Contact number]

Response Time: We will respond to inquiries within **7 business days**.

Consumer Grievance Redressal:

- **Nodal Officer:** [Name and contact] for consumer complaints
- **Grievance Email:** grievances@sarvayaan.com
- **Consumer Helpline:** [Phone number]

21. IMPORTANT NOTICES

Consumer Protection Act, 2019 - Your Rights:

As a consumer, you have the right to:

- Lodge a complaint with the District Consumer Commission if defective or misleading services are provided
- Seek compensation for loss or damage caused by defective services
- Access free consumer redressal forums
- File complaints within 2 years of the cause of action

Information Technology Act, 2000:

The Company is committed to complying with the IT Act, 2000, including:

- Protection of your data and privacy
- Cyber security standards
- Responsible disclosure of data breaches
- Cooperation with law enforcement as required by law

22. ACKNOWLEDGMENT

By downloading and using the BIMba XR Application, you acknowledge that:

- You have read and understood these Terms and Conditions
- You agree to be bound by these Terms
- You have the legal capacity to enter into this agreement
- You are not prohibited by law from using the Application
- You understand and accept the limitations of liability
- You consent to the collection and use of information as described in our Privacy Policy

Document Version: 1.0

Effective Date: November 24, 2025

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Status: Ready for Google Play Deployment in India

These Terms and Conditions are prepared in compliance with Indian law, including the Information Technology Act, 2000, Consumer Protection Act, 2019, and applicable state regulations. All references to rupees (₹) are in Indian Rupees (INR).